

Raeesuddin v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 February 2023 · WRIT-C No. 3572 of 2023 · **Writ disposed; petitioner relegated to Section 127 appeal**

HEADNOTE

A writ against the final assessment order dated 14 October 2022, passed under the Electricity Act, 2003 and the Electricity Supply Code, 2005, was not examined. The petitioner was relegated to the appeal under Section 127, and the petition was disposed of.

FACTUAL SUMMARY

Raeesuddin filed Writ-C No. 3572 of 2023 in the High Court of Judicature at Allahabad against the State of Uttar Pradesh and another. He challenged the final assessment order dated 14 October 2022 passed by respondent no. 2. That order had been made under the Electricity Act, 2003 and the Electricity Supply Code, 2005. Sandeep Kumar Tripathi appeared for the petitioner, and the Chief Standing Counsel with Pranjal Mehrotra appeared for the respondents. The Division Bench heard the petition on 2 February 2023.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

Appeal against a final assessment order

HOLDING

The High Court declined to examine the writ challenge to the final assessment order dated 14 October 2022, passed under the Electricity Act, 2003 and the Electricity Supply Code, 2005, and relegated the petitioner to the statutory appeal under Section 127. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal

The writ against the final assessment dated 14 October 2022 was not examined, and the petitioner was relegated to the Section 127 appeal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE FINAL ASSESSMENT ORDER DATED 14 OCTOBER 2022

Left to the statutory appeal under Section 127; the writ court declined to examine the challenge. ¶ 1